

No. 07-665

---

In The  
**Supreme Court of the United States**

---

PLEASANT GROVE CITY, UTAH, et al.,  
*Petitioners,*

v.

SUMMUM, a corporate sole and church,  
*Respondent.*

---

*On Writ of Certiorari to the United States  
Court of Appeals for the Tenth Circuit*

---

**BRIEF AMICUS CURIAE OF THE AMERICAN  
CATHOLIC LAWYERS ASSOCIATION IN  
SUPPORT OF PETITIONER**

---

CHRISTOPHER A. FERRARA  
AMERICAN CATHOLIC LAWYERS  
ASSOCIATION  
420 U.S. HIGHWAY RT. 46  
P.O. BOX 10092  
FAIRFIELD, NJ 07004  
(973) 244-9895

EDWARD C. LYONS\*  
*Counsel of Record*  
3531 CHATHAM WAY  
ANN ARBOR, MI 48105  
(734) 302-0095  
\*SPECIAL COUNSEL TO ACLA  
eclyons@gmail.com

June 23, 2008

*Counsel for Amicus Curiae*

**TABLE OF CONTENTS**

|                                                                                                                                                                                                                                                                                                                                                                         |     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|
| TABLE OF AUTHORITIES .....                                                                                                                                                                                                                                                                                                                                              | iii |
| INTEREST OF THE AMICUS CURIAE .....                                                                                                                                                                                                                                                                                                                                     | 1   |
| SUMMARY OF THE ARGUMENT .....                                                                                                                                                                                                                                                                                                                                           | 1   |
| ARGUMENT .....                                                                                                                                                                                                                                                                                                                                                          | 2   |
| I. The Tenth Circuit decision that donated property, once accepted and placed by the government on public property, remains the private speech of the donor and, therefore, entails application of “public forum” strict scrutiny analysis contradicts the very notion of a donation, and is contrary to other Circuits’ interpretation of the Free Speech Clause. .... | 2   |
| A. The Tenth Circuit Decision that donated property remains private speech after being accepted by the government conflicts with the basic conception of a “donation” and relevant Supreme Court precedent. ....                                                                                                                                                        | 2   |
| B. The Tenth Circuit’s conclusion that donated property remains private speech after being accepted by the government and thus triggers public forum analysis is in conflict with other federal circuit decisions interpreting the Free Speech Clause. ....                                                                                                             | 8   |

|                                                                                                                                                                                                                                                                                                                                     |    |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----|
| II. The Tenth Circuit’s decision unreasonably interferes with the government’s free speech right to bring to the attention of the public distinctive contributions, formative historical events, or other worthy objects that the government reasonably concludes are of contemporary interest or concern to the community. . . . . | 9  |
| A. It is undisputed that the government may speak, and has spoken, freely about matters it believes are in the public interest regardless of whether such speech may contradict or coincide with the content of the private speech of individual citizens. . . . .                                                                  | 9  |
| B. The Tenth Circuit’s decision will <i>dilute</i> the government’s ability to highlight matters it believes appropriate for public awareness                                                                                                                                                                                       | 12 |
| C. The Tenth Circuit’s decision will <i>chill</i> the ability of the government to highlight matters it believes appropriate for public consideration . . . . .                                                                                                                                                                     | 14 |
| CONCLUSION . . . . .                                                                                                                                                                                                                                                                                                                | 15 |
| APPENDIX                                                                                                                                                                                                                                                                                                                            |    |
| Appendix A: Color Photos - Donated Sculptures, Monuments, and Memorials in Government Parks or Public Forums . . . . .                                                                                                                                                                                                              | 1a |

## TABLE OF AUTHORITIES

### CASES

|                                                                                                                                 |              |
|---------------------------------------------------------------------------------------------------------------------------------|--------------|
| <i>ACLU Nebraska Found. v. City of Plattsmouth</i> ,<br>419 F.3d 772 (8th Cir. 2005) . . . . .                                  | 8            |
| <i>ACLU v. Shundler</i> ,<br>104 F.3d 1435 (3rd Cir. 1997) . . . . .                                                            | 8            |
| <i>Capitol Square Review and Advisory Bd. v. Pinette</i> ,<br>515 U.S. 753, 115 S.Ct. 2440,<br>132 L.Ed.2d 650 (1995) . . . . . | 4, 6         |
| <i>Freedom from Religion Found. v. City of Marshfield</i> ,<br>203 F.3d 287 (7 <sup>th</sup> Cir. 2000) . . . . .               | 8            |
| <i>Graff v. City of Chicago</i> ,<br>9 F.3d 1309 (7th Cir. 1993) . . . . .                                                      | 9            |
| <i>Kaplan v. City of Burlington</i> ,<br>891 F.2d 1024 (2nd Cir. 1989) . . . . .                                                | 9            |
| <i>Lubavitch Chabad House, Inc. v. City of Chicago</i> ,<br>917 F.2d 341 (7th Cir. 1990) . . . . .                              | 9            |
| <i>PETA v. Gittens</i> ,<br>414 F.3d 23 (D.C. Cir. 2005) . . . . .                                                              | 8            |
| <i>Summum v. City of Ogden</i> ,<br>297 F.3d 995 (10th Cir. 2002) . . . . .                                                     | 3            |
| <i>Summum v. Pleasant Grove City</i> ,<br>483 F.3d 1044 (10th Cir. 2007) . . . . .                                              | 3, 4, 13, 14 |

|                                                                            |   |
|----------------------------------------------------------------------------|---|
| <i>Tucker v. City of Fairfield</i> ,<br>398 F.3d 457 (6th Cir. 2005) ..... | 9 |
|----------------------------------------------------------------------------|---|

|                                                                                              |         |
|----------------------------------------------------------------------------------------------|---------|
| <i>Van Orden v. Perry</i> ,<br>545 U.S. 677, 125 S.Ct. 2854,<br>162 L.Ed.2d 607 (2005) ..... | 4, 5, 6 |
|----------------------------------------------------------------------------------------------|---------|

## **RULES**

|                                 |   |
|---------------------------------|---|
| 38 Am. Jur. 2d Gifts § 68 ..... | 3 |
|---------------------------------|---|

## INTEREST OF THE AMICUS CURIAE<sup>1</sup>

The American Catholic Lawyers Association, Inc., ACLA, is a non-profit organization dedicated to securing the rights of Catholics in the United States.

The ACLA's interest in this case is clear. The Catholic Church and other religious communities, through the actions of their members, have made significant contributions in this country and the world in every sphere of human life: philosophy, law, literature, politics, science, and the arts. In recognition of this fact, governmental bodies have frequently accepted donations of sculptures, statues, plaques, monuments, or other physical memorials that capture these achievements for the community's appreciation.

## SUMMARY OF THE ARGUMENT

The Tenth Circuit opinion in this case illustrates a paradigm example of a well-known axiom of logic: faulty premise, faulty conclusion.

By injudiciously holding that all private property donated and accepted by the government remains the private speech of donors, the Tenth Circuit was ineluctably led to the mistaken conclusion that public

---

<sup>1</sup> As reflected in the record, all parties have consented to the filing of this *amicus curiae* brief. No counsel for a party authored this brief in whole or in part and no counsel or party made a monetary contribution intended to fund the preparation or submission of this brief. No person other than *amicus curiae*, its members, or its counsel made a monetary contribution to its preparation or submission.

forum analysis applies when such monuments are placed by the government in public areas. Neither logic nor the Free Speech Clause of the First Amendment supports this decision.

In short, the Tenth Circuit decision unreasonably deprives federal, state, and local governments from highlighting for public reflection important “monumental” achievements or concerns of the community.

## **ARGUMENT**

**I. The Tenth Circuit decision that donated property, once accepted and placed by the government on public property, remains the private speech of the donor and, therefore, entails application of “public forum” strict scrutiny analysis contradicts the very notion of a donation, and is contrary to other Circuits’ interpretation of the Free Speech Clause.**

**A. The Tenth Circuit Decision that donated property remains private speech after being accepted by the government conflicts with the basic conception of a “donation” and relevant Supreme Court precedent.**

In the present case it is undisputed that the monuments at issue in Pioneer Park (the “Park”), Pleasant Grove, Utah are the property of the City of Pleasant Grove (“Pleasant Grove”). Further, it is uncontested that the Ten Commandment monument

and other monuments located in the Park were “donated” by private parties and “accepted” by Pleasant Grove. All agree that the donated monuments are the property of and belong to Pleasant Grove.

Nevertheless, Respondent Summum (“Summum”) argues, and the Tenth Circuit agreed, that even after that property became the public property of Pleasant Grove, it remained the “private speech” of the donor rather than the speech of the government.

Summum’s contention, apart from other substantial arguments against it, rests upon an implausible departure from the common law understanding of “donation” and “acceptance”. As the most basic blackletter law provides, a completed, absolute donation or gift of property from one party to another transfers to the donee complete ownership and possession of all interest in the transferred property. (See, e.g., 38 Am. Jur. 2d Gifts § 68 “A completely executed gift . . . operates . . . as a full and complete transfer of the title to the property from the donor to the donee. . . . When a gift occurs, ownership vests in the donee immediately and is absolute.”)

This point is not irrelevant to issues raised in the present case. In ruling in favor of Summum, the Tenth Circuit, citing its prior holding in *Summum v. City of Ogden*, 297 F.3d 995, 1006 (10th Cir. 2002) concluded that a Ten Commandment monument donated and placed by the city on public property was private speech rather than that of the city.” *Summum v. Pleasant Grove City*, 483 F.3d 1044, 1048, footnote 2 (10<sup>th</sup> Cir. 2007). In so doing, the court of appeals rejected Pleasant Grove’s argument that the Ten

Commandment monument was government speech rather than private speech. *Id.*

Pleasant Grove had relied in support of this argument on *Van Orden v. Perry*, 545 U.S. 677, 125 S.Ct. 2854, 162 L.Ed.2d 607 (2005), where this Court found that the government had not violated the Establishment Clause in connection with the display of a donated permanent Ten Commandment monument on government property. Pleasant Grove argued that this Court would not have even considered the Establishment Clause claim in *Van Orden* unless it believed that such monuments were government speech.

The Tenth Circuit, however, rejected Pleasant Grove's reliance on *Van Orden* by pointing to discussion of whether Establishment Clause "endorsement" claims always depended upon the existence of "government speech." Based on Justice O'Connor's concurrence in *Capitol Square Review and Advisory Bd. v. Pinette*, 515 U.S. 753, 774, 115 S.Ct. 2440, 132 L.Ed.2d 650 (1995) (O'Connor, J., concurring in part and concurring in judgment), the court of appeals observed that claims of impermissible "endorsement" of religion might occur even in the absence of "government speech" but based on private speech. *Pleasant Grove*, 483 F.3d at 1048.

Based on an analogy to Justice O'Connor's reasoning in her *Capital Square Review* dicta, the court of appeals in this case concluded with little analysis or discussion that Pleasant Grove's claim of government speech must fail. Apparently, the Tenth Circuit believed that just as an Establishment Clause

claim did not demand the existence of government speech, so too a Free Speech Clause claim might be brought against the government in the absence of government speech. Accordingly, it rejected Pleasant Grove's view that *Van Orden* necessitated the conclusion that a Ten Commandment monument donated to a city and accepted for placement in a public area had to constitute "government speech."

Many objections can be directed against the Tenth Circuit's attempt to analogize Establishment Clause claims directly to Free Speech Clause claims. It is obvious that the purposes of these constitutional clauses and the tests for applying them differ in important respects. It suffices here to point out that the unique facts underlying Justice O'Connor's concurrence in *Capital Square Review* totally undermine the Tenth Circuit's reliance on it. Nothing in that Establishment Clause case supports the court of appeals' rejection of Pleasant Grove's argument, based on *Van Orden*, that the Ten Commandment monument was government speech rather than private speech.

In *Capital Square Review*, a private party had placed a temporary, unattended religious display on government property. The issue addressed by Justice O'Connor was whether conditions of the placement of that private display on government property might support a finding of government endorsement of the private speech. She concluded that even though the display did not itself constitute government speech, the circumstances surrounding its placement might

constitute endorsement of the message by the government.<sup>2</sup>

The court of appeals has completely overstated the import of Justice O'Connor's discussion and misconstrued its applicability to this case. Justice O'Connor's concern in that case arises solely out of the undisputed factual premise that the display in question was a temporary, albeit unattended display belonging to a private party but placed on government land. Her question in that specific factual context was whether that private speech was guaranteed free speech protection "*on all property owned by the State*" *Capitol Square Review*, 515 U.S. at 74, 115 S.Ct. 2440, 132 L.Ed.2d 650 (1995) emphasis added). To reiterate, her conclusion in dicta was that the government might still be found to improperly endorse religion by the circumstances of its treatment of unattended display of expressive privately-owned property.

The facts of the Pleasant Grove case, similar to those in *Van Orden*, are completely inapposite to those at issue in *Capitol Square Review*. In that case, the question was whether privately-owned property of an expressive nature located on public property might lead to the conclusion that the government was endorsing the message communicated by that private

---

<sup>2</sup> "While the plurality would limit application of the endorsement test to expression *by the government itself*, . . . I believe that an impermissible message of endorsement can be sent in a variety of contexts, not all of which involve direct government speech or outright favoritism. *Capitol Square Review and Advisory Bd. v. Pinette*, 515 U.S. 753, 774, 115 S.Ct. 2440, 2452 (1995) (internal citations omitted).

property. In this case, there simply is no private ownership or private interest in property through which some party other than the government might be “speaking” *on* government property. In this case, it is uncontroverted that all the property that is “speaking” on government property belongs entirely to Pleasant Grove.

In fact, contrary to the Tenth Circuit’s inference, Justice O’Connor’s discussion supports Pleasant Grove’s position. Absent the existence of any private ownership or other private interest in the unattended display on the property belonging to the government, no rational exists to suggest that private speech is at play in this case.

The Tenth Circuit, however, implausibly concluded that *after* property has been completely given to and accepted by the government, a donor somehow still retains sufficient connection with that property, now wholly owned by the government, by which that private donor still exercises its private free speech. Neither the logic of donation nor the precedent relied upon by the Tenth Circuit supports this tenuous reasoning.

**B. The Tenth Circuit’s conclusion that donated property remains private speech after being accepted by the government and thus triggers public forum analysis is in conflict with other federal circuit decisions interpreting the Free Speech Clause.**

The alleged violation of the First Amendment in this case depends entirely upon the court of appeals’ erroneous holding that a government-owned but donated monument placed on public property constitutes the private speech of the donor.

As ably demonstrated by Petitioners and other amici curiae, this holding conflicts with the law in numerous other Circuits. *See, e.g., ACLU Nebraska Found. v. City of Plattsmouth*, 419, F3d 772, 774, 778 (8<sup>th</sup> Cir. 2005); *Freedom from Religion Found. v. City of Marshfield*, 203 F.3d 287, 491 (7<sup>th</sup> Cir. 2000). *ACLU v. Shundler*, 104 F.3d 1435, 1444 (3<sup>rd</sup> Cir. 1997). *PETA v. Gittens*, 414 F.3d 23 , 28-29 (D.C. Cir. 2005).

Similarly, the court of appeals’ subsequent conclusion—though flowing naturally from the court’s first decision—is erroneous. No other Circuit has held that the placement of permanent property donated to the government on public land *ipso facto* creates a free speech public forum and triggers strict scrutiny analysis for private requests to place similar types of property on that land.

In fact, that law of other circuits provides that no First Amendment right exists for private citizens to place permanent monuments on property otherwise

classified as a public forum. *See, e.g., Graff v. City of Chicago*, 9 F.3d 1309, 1314 (7<sup>th</sup> Cir. 1993); *Kaplan v. City of Burlington*, 891 F.2d 1024, 1029 (2<sup>nd</sup> Cir. 1989); *Lubavitch Chabad House, Inc. v. City of Chicago*, 917 F.2d 341, 347 (7<sup>th</sup> Cir. 1990); *Tucker v. City of Fairfield*, 398 F.3d 457, 462 (6<sup>th</sup> Cir. 2005).

**II. The Tenth Circuit’s decision unreasonably interferes with the government’s free speech right to bring to the attention of the public distinctive contributions, formative historical events, or other worthy objects that the government reasonably concludes are of contemporary interest or concern to the community.**

**A. It is undisputed that the government may speak, and has spoken, freely about matters it believes are in the public interest regardless of whether such speech may contradict or coincide with the content of the private speech of individual citizens.**

It is uncontested that the government has a right to free speech limited only by the other constitutional restrictions on the exercise of governmental power. *See, e.g., Pleasant Grove’s Brief for Petitioners*, 20-22. In this case, no claim is made that Pleasant Grove has violated any other independent constitutional provision.

Absent a conflict with other constitutional restrictions, the government is permitted wide latitude in its ability to speak and articulate the message it

chooses. Such utterances may at times challenge or even conflict with the private speech of many citizens. At the same time, however, such government speech may overlap with the free speech views of many citizens.

In the case of government speech expressed through the placement of non-donated permanent monuments, there is no suggestion that this mode of government speech is impermissible or that it triggers public forum analysis. In this context, private citizens' demands to be given equal free speech access to erect similar monuments have no legal merit.

As argued above, there is little logic or legal support for the conclusion that solely because monuments have been donated to the government, i.e., belonged to another party prior to the government taking ownership of them, that somehow this analysis should change. Donated monuments accepted and placed by the government differ in no substantive way from monuments created directly by government commission.

As illustrated by the photographs in Appendix A ("App. A") of this amicus brief, the subject matter of monuments placed by the government in parks or other locations varies over a wide spectrum. It is clear, however, that the purpose of the government's speech in placing the vast majority of such monuments is to bring before the public consideration of historical, political, moral, cultural and/or artistic events, values, or policies that the government believes are worthy of public interest, concern, or even entertainment.

The following list illustrates examples of innumerable other donated monuments or memorials scattered across the United States on federal, state, county, and municipal property.

- *John Paul II Memorial Plaque, Boston Common, Boston, Massachusetts, donated by the International Order of the Alhambra to the City of Boston in June 1981. (App. 1a-1)*
- *Padre Junipero Serra Sculpture, Golden Gate Park, San Francisco, California, donated by James D. Phelan to the City of San Francisco in 1907. (App. 1a-2)*
- *Mohandas Karamchand Gandhi Sculpture, Union Square Park, New York, New York, donated by the Gandhi Memorial International Foundation to the City of New York in 1986. (App. 1a-3)*
- *Martin Luther King, Jr. Landmark Memorial, Currie Park, West Palm Beach, Florida, multiple elements donated through the Martin Luther King Coordinating Committee to the City of West Palm Beach in 2004. (App. 1a-4)*
- *Vietnam Veterans Memorial, Washington Mall, Washington D.C., privately funded through the Vietnam Veterans Memorial Fund and accepted by the United States in 1984. (App. 1a-5)*
- *Oregon Holocaust Memorial, Washington Park, Portland, Oregon, donated by private funding through the Oregon Holocaust Memorial*

Coalition to the City of Portland in 2004. (App. 1a-6)

- *The Willing Captive*, Lincoln Park, Newark, New Jersey, donated by Dr. J. Ackerman Coles to the City of Newark in 1895 (based on historical record of captives choosing to remain with their Indian tribe despite being allowed to depart). (App. 1a-7)
- *LOVE Sculpture*, John F. Kennedy Plaza, Philadelphia, Pennsylvania, donated by F. Eugene Dixon to the City of Philadelphia in 1978. (App. 1a-8)
- *Alice in Wonderland Sculpture*, Central Park, New York, New York, donated by George Delacorte to the City of New York in 1959. (App. 1a-9)
- *Balto Sculpture*, Central Park, New York, New York, donated by the Balto Monument Committee to the City of New York in 1925. (App. 1a-10)

**B. The Tenth Circuit’s decision will *dilute* the government’s ability to highlight matters it believes appropriate for public awareness**

The Tenth Circuit’s ruling provides that if Pleasant Grove chooses to place donated monuments it has accepted in Pioneer Park it is also obligated under the First Amendment Free Speech Clause to allow all other private speakers to place their permanent

monuments subject only to “reasonable content-neutral resolution regulating the time, manner, or place of speech in the park.” *Pleasant Grove*, 483 F.3d at 1054.

One significant consequence of this decision will be the inability of the government to isolate for special consideration its own speech. If all private actors may install permanent, unattended monuments in public areas once the government has installed a donated monument, it becomes significantly more difficult for the government to communicate its own speech in a manner highlighting the value of its message *as the speech of the government*.

If, for example, a city accepted and placed a donated Holocaust memorial in a park, *see, e.g. The Oregon Holocaust Memorial*, App. 1a-6, it might do so for a variety of salutary purposes: in order to impress upon the community’s collective memory the danger caused by forfeiting democratic freedom, the risk of losing respect for human dignity, and, obviously out of respect and honor for those persons who died in that tragic event and their relatives

Under the Tenth Circuit’s ruling, however, any neo-fascist or other group opposed to the memory of the Holocaust or any of those other high public ideals would be free to erect its own monument openly challenging the sentiments communicated by the Holocaust Memorial.

By being forced to welcome all conflicting permanent monuments, however, the government is deprived from expressing in the most physical,

concrete way that its speech represents the elected *government's own view* of those ideals, values or events that contribute to the public good. Instead, the government-installed monument becomes just one more expressive work standing alongside the myriad other monuments expressing private opinions protected by the Free Speech Clause.

In such circumstances, the rationale and motivation for the government choosing to install such monuments in the first place will be significantly diminished.

**C. The Tenth Circuit's decision will *chill* the ability of the government to highlight matters it believes appropriate for public consideration**

Of course, a possible, and perhaps probable, response to this threat of the dilution of government speech created by the Tenth Circuit's decision would be for a government simply to forego accepting monuments for public placement. In fact, the court of appeals itself offered this as a viable solution if a city desired to avoid the complications arising from the acceptance of donated monuments: a city could "ban all permanent displays of an expressive nature by private individuals." *Pleasant Grove*, 483 F.3d at 1054.

This result, however, would be even more chilling of government speech than the dilution problem. As the photographs in Appendix A illustrate, as a matter of historical fact governmental bodies frequently rely upon donated property to assist them in exercising their governmental speech rights.

The obvious rationale for this is the practical limit upon the government's ability to produce such monuments given the finite public resources to be allocated to these types of projects and the demand for money to be allocated for other more pressing purposes. In fact, the more important the government speech in terms of its aesthetic quality and magnitude, the more difficult it will be for the government to carry it out without private assistance. *See, e.g., the Vietnam Veterans Memorial* (App. 1a-5). The more significant the permanent speech exercised by government is, the more likely donation by private individuals would be required to play a part in it.

If the Tenth Circuit is correct in its conclusion that a donation of property to the government precludes the government from ever speaking through that property and also forces the government to place all private monuments, the result is clear: government will often remain mute.

## CONCLUSION

The Tenth Circuit's decision is required neither by historical practice, logic, nor the text of the Constitution. Its decision will either dilute or severely chill the ability of the government to exercise its free speech right to highlight important intellectual, moral, political and artistic values that it reasonably believes are or should be of community interest. For the reasons stated, the Tenth Circuit's decision should be reversed.

Respectfully submitted

CHRISTOPHER A. FERRARA  
AMERICAN CATHOLIC LAWYERS  
ASSOCIATION  
420 U.S. HIGHWAY RT. 46  
P.O. BOX 10092  
FAIRFIELD, NJ 07004  
(973) 244-9895

EDWARD C. LYONS\*  
*Counsel of Record*  
3531 CHATHAM WAY  
ANN ARBOR, MI 48105  
(734) 302-0095  
\**SPECIAL COUNSEL TO ACLA*

*Counsel for Amicus Curiae*

June 23, 2008

## **APPENDIX**

1a

---

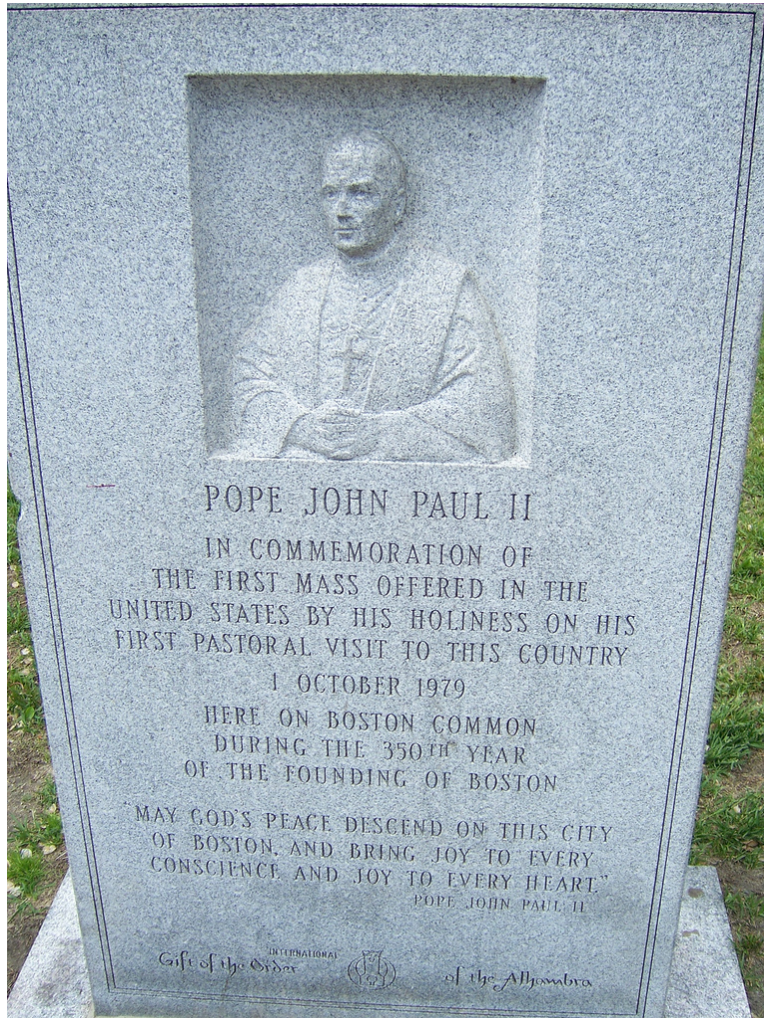
**APPENDIX A**

---

**COLOR PHOTOS**

**DONATED SCULPTURES, MONUMENTS,  
AND MEMORIALS IN GOVERNMENT PARKS OR  
PUBLIC FORUMS**

1a-1



Ernie Bello, creative commons license 2.0., flicker.com

**John Paul II Memorial  
Boston Common  
Donated by the International Order of the  
Alhambra to the City of Boston in June 1981**

1a-2



Mary Harrsch, creative commons license 2.0, flickr.com

**Padre Junipero Serra Sculpture  
Golden Gate Park  
Donated by James D. Phelan to  
the City of San Francisco in 1907**

1a-3



Navendu Shirali, public domain

**Mohandas Karamchand Gandhi Sculpture  
Union Square Park  
Donated by the Gandhi Memorial International  
Foundation to the City of New York in 1986**

1a-4



Wally Gobetz, creative commons license 2.0, flickr.com

**Martin Luther King, Jr. Landmark Memorial  
Currie Park  
Multiple Elements Donated through the Martin Luther  
King Coordinating Committee to the City of West Palm  
Beach in 2004**

1a-5



[Américo Nunes](#), Creative Commons License 2.0, flicker.com

**Vietnam Veterans Memorial  
Washington Mall, Washington D.C.  
Privately funded through the Vietnam Veterans  
Memorial Fund and accepted by  
the United States in 1984**

1a-6



P. Medved, Creative Commons License 2.0, flicker.com

**Oregon Holocaust Memorial  
Washington Park  
Donated by private funding through the Oregon  
Holocaust Memorial Coalition  
to the City of Portland Oregon in 2004**

1a-7



Einar Einarsson Kvaran, GNU Free Documentation License

**The Willing Captive  
Lincoln Park  
Donated by Dr. J. Ackerman Coles  
to the City of Newark in 1895**

1a-8



Jeffrey M. Vinocur, Multi-license GFDL and Creative Commons CC-BY 2.5

**LOVE Sculpture John F. Kennedy Plaza  
Donated by F. Eugene Dixon to  
the City of Philadelphia in 1978**

1a-9



Pietro Izzo, Creative Commons License 2.0, flickr.com

**Alice in Wonderland Sculpture  
Central Park  
Donated by George Delacorte  
to the City of New York in 1959**

1a-10



Wally Gobetz, Creative Commons License 2.0, flickr.com

**Balto Sculpture  
Central Park  
Donated by the Balto Monument Committee  
to the City of New York in 1925**